

2023-P00053E

**AMENDMENT NO. 5
TO THE
ENERGY STORAGE SERVICES AGREEMENT
BETWEEN
CLEAN FLEXIBLE ENERGY LLC
AND
THE PUERTO RICO ELECTRIC POWER AUTHORITY**

This Amendment No. 5 to the Energy Storage Services Agreement for Salinas (this "Amendment") is entered into as of November 30, 2023 (the "Fifth Amendment Effective Date"), by and between the Puerto Rico Electric Power Authority ("PREPA") and Clean Flexible Energy LLC (the "Resource Provider"). PREPA and Resource Provider are herein individually referred to as a "Party" and collectively referred to as "Parties." All capitalized terms used in this Amendment and not otherwise defined shall have the meaning given to them in the Agreement (defined below).

RECITALS

WHEREAS, the Parties entered into that certain Energy Storage Services Agreement, dated August 26, 2022 (the "Agreement"), which provided two hundred forty (240) Days to reach the Closing Date;

WHEREAS, the Parties entered into that certain Amendment No. 1 to the ESSA, dated March 17, 2023 (the "First Amendment"), which provided for an additional sixty (60) Days to reach the Closing Date;

WHEREAS, the Parties entered into that certain Amendment No. 2 to the ESSA, dated June 15, 2023 (the "Second Amendment"), which extended the Closing Date to June 30, 2023;

WHEREAS, the Parties entered into that certain Amendment No. 3 to the ESSA, dated June 30, 2023 (the "Third Amendment"), which extended the Closing Date to July 10, 2023;

WHEREAS, the Parties entered into that certain Amendment No. 4 to the PPOA, dated July 10, 2023 (the "Fourth Amendment"); and

WHEREAS, the Parties now desire to amend certain provisions of the Agreement in accordance with the terms of this Amendment,

NOW, THEREFORE, in consideration of the mutual promises, covenants and agreements set forth herein and for other good and valuable consideration the receipt and sufficiency of which are hereby acknowledged, the Parties hereto, intending to be legally bound, hereby agree as follows:

SECTION A. Amendments

1. In Section 1.1 (*Definitions*), the following defined terms and their corresponding definitions are hereby added in alphabetical order within such section:

"Ciro" means *Ciro One Salinas, LLC*.

"Ciro Agreement" means the agreement entered into or to be entered into between Resource Provider and *Ciro* pursuant to which *Ciro* will undertake the PREPA Interconnection Facilities Work and Resource Provider will reimburse *Ciro* for a portion of such work.

"Ciro Reimbursement Amount" means the amount payable by Resource Provider to Ciro pursuant to the Ciro Agreement in reimbursement of Ciro's costs in relation to the PREPA Interconnection Facilities Work.

"PREPA Interconnection Facilities Work" means the work to develop, design, finance, permit, construct, install, test and commission the PREPA Interconnection Facilities.

"T&D Operator Fee" means the estimate of T&D Operator's internal costs related to the PREPA Interconnection Facilities Works as specified in Appendix D of the revised Facility Study and System Impact Study (as amended or replaced by the Parties from time to time), and to be paid in accordance with the Interconnection Agreement.

2. In Section 1.1 (*Definitions*), the following defined terms and corresponding definitions are hereby amended and restated in their entirety:

"Development Abandonment" means (i) the permanent cessation by Resource Provider of the development and construction of the Facility being installed by Resource Provider after the Closing Date and prior to the Commercial Operation Date, as evidenced by Resource Provider's or its construction contractors' personnel having withdrawn from the Site (unless Resource Provider demonstrates otherwise) and Resource Provider having otherwise ceased development and construction activities related to the Facility for more than one hundred twenty (120) consecutive Days for any reason other than as a result of Force Majeure affecting Resource Provider or a PREPA Risk Event; (ii) Resource Provider's failure to fund the PREPA Interconnection Facilities Work in accordance with the Ciro Agreement; or (iii) Resource Provider's failure to pay the T&D Operator Fee in accordance with the Interconnection Agreement.

3. Sections 3.2(a) and (b) (*Resource Provider's Development Obligations*) of the Agreement are hereby amended and restated in their entirety to read as follows:

3.2 Resource Provider's Development Obligations

- a. Resource Provider shall (i) develop, design, finance, permit, construct, install, test, and commission the Facility, (ii) pay Ciro the Ciro Reimbursement Amount in accordance with the Ciro Agreement, and (iii) achieve Commercial Operation no later than the Guaranteed Commercial Operation Date, at its own cost, in accordance with the Milestone Schedule, the requirements of all Permits, the MTRs, the Approved Design, the Interconnection Agreement, Prudent Utility Practices, the other provisions of this Agreement, Applicable Law and Applicable Standards.
- b. Resource Provider shall promptly pay to T&D Operator all amounts invoiced by T&D Operator in accordance with the Interconnection Agreement for the T&D Operator Fee.
4. Section 3.3 (*PREPA Development Obligations*) is hereby amended and restated in its entirety to read as follows:

3.3 PREPA Interconnection Facilities Works

PREPA acknowledges that (i) Ciro will have primary responsibility for the PREPA Interconnection Facilities Works and (ii) Resource Provider is obligated to pay Ciro the Ciro Reimbursement Amount under the Ciro Agreement. PREPA acknowledges that if the

Ciro Reimbursement Amount (together with any other reasonable and documented costs incurred by Resource Provider that are directly attributable to the PREPA Interconnection Facilities Works) exceeds the Estimated Cost, the Interconnection Cost Recovery Component will not compensate Resource Provider for such excess cost, and agrees to work in good faith with Resource Provider, the T&D Operator, FOMB, PREB, and other relevant Governmental Authorities to agree on a mechanism to compensate Resource Provider for such excess cost.

5. Limb (b) of Part 3 (*Mutual Conditions*) of Appendix C (*Conditions Subsequent*) to the Agreement is hereby amended and restated in its entirety to read as follows:

b. an executed copy of the Interconnection Agreement (substantially in the form circulated by T&D Operator in February 2023), signed by the parties thereto, provided that such copy will (i) reflect the final interconnection design and arrangements for the Project agreed by Resource Provider, PREPA, and T&D Operator; and (ii) reflect the Point of Interconnection set out in Appendix I, as amended.

6. Section 2 (*Monthly Fixed Payment*) of Appendix F (*Compensation*) of the Agreement is hereby amended by replacing references to the "Contracted Cost" with references to the "Ciro Reimbursement Amount."

7. Appendix H-1 (*Electrical Interconnection Single Line Diagram*) of the Agreement is hereby amended and restated in its entirety as shown by Annex A attached hereto.

8. In Appendix J (*Operating Procedures*), the reference to "Aguirre S/E" as the Substation is hereby replaced by a reference to the "Ciro Sectionalizer."

9. Notwithstanding anything to the contrary in the Agreement, if this Fifth Amendment requires the approval of the FOMB or PREB or any other Governmental Authority and any such approval is not provided and notified to Resource Provider before November 30, 2023, then the November 30, 2023, deadline set out in Sections 2.3(b) and 2.3(c) of the Agreement, as amended by the Fourth Amendment, shall be extended on a day-for-day basis for each day beginning on November 30, 2023, until each such approval is provided and notified to Resource Provider.

SECTION B. Representations and Warranties

1. PREPA hereby represents and warrants to Resource Provider that: (a) the execution and delivery by PREPA of this Amendment has been duly authorized by PREPA's Governing Board; and (b) this Amendment is a legal, valid, and binding obligation of PREPA, enforceable against PREPA in accordance with its terms, except as may be limited by applicable bankruptcy, insolvency or similar laws affecting the enforcement of rights generally, and subject to the approvals required by the Conditions Subsequent as defined therein.
2. Resource Provider hereby represents and warrants to PREPA that: (a) the execution, delivery, and performance by Resource Provider of this Amendment (i) have been duly authorized, (ii) do not and will not require any additional internal consent or approval of Resource Provider and (iii) do not and will not violate any provision of Resource Provider's certificate of formation or operating agreement, or any material indenture, contract or agreement to which it is a party or by which it or its properties may be bound, or any law, ordinance, rule, regulation, order, writ, judgment, injunction, decree, determination or award presently in effect; and (b) this Amendment is a legal, valid and binding obligation of Resource Provider, enforceable against Resource Provider in

accordance with its terms, except as may be limited by applicable bankruptcy, insolvency or similar laws affecting the enforcement of rights generally.

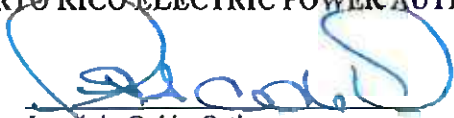
SECTION C. Miscellaneous

1. Information for Controller's Office. PREPA will charge all payments that it owes under the Agreement, as amended by this Amendment, to PREPA's budget account number and estimates that its costs under the Agreement will not exceed two billion four hundred fifty nine million five hundred forty two thousand six hundred fifty five dollars and fifteen cents (\$2,459,542,655.15). For the avoidance of doubt, the Parties have set out the expected account number and estimate of costs for informational purposes to satisfy the requirements of the Puerto Rico Controller. This paragraph does not bind the Parties or modify any other provision of the Agreement.
2. Headings. The headings in this Amendment are for reference only and do not affect the interpretation of this Amendment.
3. No Implied Waiver. This Amendment shall be limited precisely as written and does not modify any provisions of the Agreement except as specifically amended above. This Amendment shall not be deemed to be a consent granted pursuant to, or a waiver or modification of, any other term or condition of the Agreement, whether or not known to the Parties, or to prejudice any other right or rights which the Agreement may now have or have in the future.
4. Counterparts. This Amendment may be executed in any number of counterparts with the same effect as if both Parties had signed the same document. All counterparts shall be construed together and shall constitute one instrument.
5. Entire Agreement. The Parties intend the Agreement, as amended by this Amendment, as the final expression of their agreement and also as a complete and exclusive statement of the terms of their agreement with respect to the subject matter thereof that supersedes all prior written and oral understandings between the Parties with respect thereto.
6. Governing Law. This Amendment shall be governed by, construed, and enforced in accordance with the Laws of the Commonwealth of Puerto Rico without regard to any contrary result required under applicable conflicts of laws rules. The Parties herein agree that all Disputes arising hereunder shall be resolved pursuant to Article 21 (*Dispute Resolution*) of the Agreement.

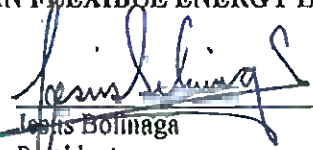
[Signatures appear on the following page.]

IN WITNESS WHEREOF, the Parties hereto have caused this Amendment to be duly executed by their respective officers as of the date first above written.

PUERTO RICO ELECTRIC POWER AUTHORITY

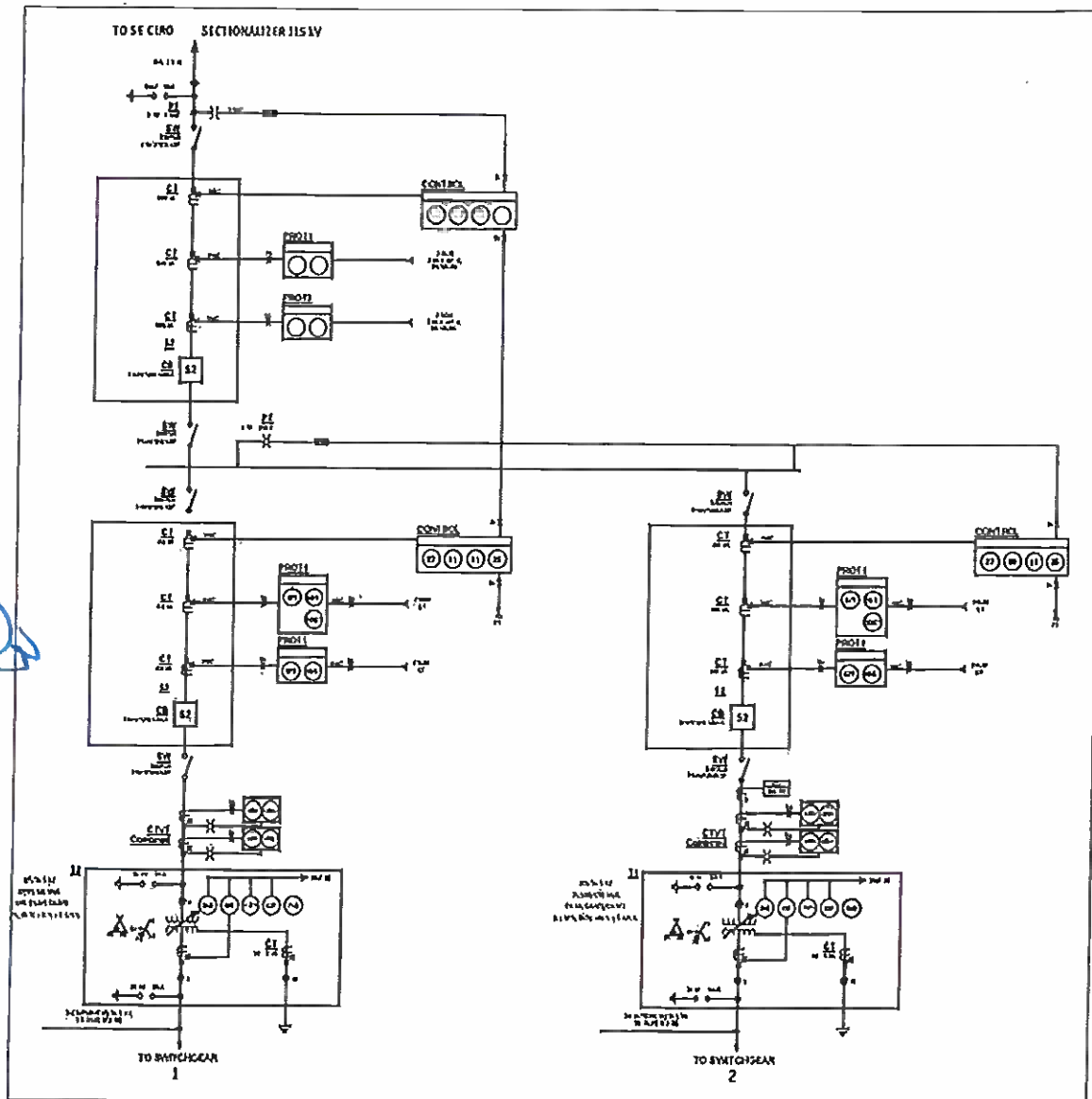
By: 
Name: Josué A. Colón Ortiz
Title: Executive Director

CLEAN FLEXIBLE ENERGY LLC

By: 
Name: Leonis Bolinaga
Title: President

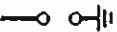
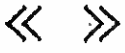
ANNEX A

APPENDIX H-1



Note: The Interconnection Point (POI) will be a point identified along the transmission line outside the perimeter of the Cirro Sectionalizer,

LEGEND

	CIRCUIT BREAKER		CABLE TERMINATION
	SURGE ARRESTER		TERMINAL
	POWER TRANSFORMER		TRIPPING LINES
	NEUTRAL GROUNDING RESISTOR		CURRENT
	POTENTIAL TRANSFORMER		POTENTIAL
	CURRENT TRANSFORMER		HIGH VOLTAGE BUS
	DRAW OUT EQUIPMENT		FIBER OPTIC CABLE
	TEST SWITCH		MOTOR OPERATOR
	FUSE		TRANSFORMER OIL TEMPERATURE RELAY
	GCB SWITCH		TRANSFORMER WINDING TEMPERATURE RELAY
	LOW VOLTAGE CIRCUIT BREAKER		TRANSFORMER SUDDEN PRESSURE RELAY
			PRESSURE RELIEVE RELAY
			OIL LEVEL RELAY
			PHASE OVERCURRENT
			GROUND OVERCURRENT
			GROUND OVERVOLTAGE
			TRANSFORMER CURRENT DIFFERENTIAL
			GROUND OVERCURRENT
			LOCKOUT RELAY